No. 26-1864
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IN THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT
IN THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

Tushawn Craig, *et al.*,

Plaintiffs-Appellees,
Tushawn Craig, et al.
Plaintiffs-Appellees,

v.

City of Richmond, Indiana,
City of Richmond, Indiana,
Defendant-Appellant.
Defendant-Appellant.

Appeal from the United States District Court for the Southern District of Indiana
Appeal from the United States District Court for the Southern District of Indiana
Case No. 1:25-cv-00782-MPB-MJD
Case No. 1:25-cv-00782-MPB-MJD
The Honorable Matthew P. Brookman
The Honorable Matthew P. Brookman

BRIEF OF APPELLEES
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JURISDICTIONAL STATEMENT

The Appellees (hereinafter "the citizens of Richmond") are dissatisfied with Appellant's ("City of Richmond") jurisdictional summary as it is incomplete and incorrect because the District Court never had jurisdiction under 28 U.S.C. § 1332(d)(11)(B) when the case does not constitute a mass action. That is the crux of the issue before this Honorable Court.

Under 28 U.S.C. §1332(d)(1), the district courts shall have original jurisdiction of any civil action in which the matter in controversy exceeds the sum or value of $5,000,000, exclusive of interest and costs, and is a mass action. A mass action is a civil action in which monetary relief claims of 100 or more persons are proposed to be tried jointly on the ground that the plaintiffs' claims involve common questions of law or fact. 28 U.S.C. § 1332(d)(11)(B)(i).

The term mass action shall *not* include any civil action in which all of the claims in the action arise from an event or occurrence in the State in which the action was filed, and that allegedly result in injuries in that State or in States contiguous to that State. 28 U.S.C. § 1332(d)(11)(B)(ii). CAFA has a "local single event exception" that applies "only to a truly local single event with no substantial interstate effects." *Allen v. Boeing Co.*, 784 F.3d 625, 632 (9th Cir. 2015).

The citizens of Richmond do not dispute that at the time of Removal, there were 100 or more persons, minimal diversity was present, and the aggregate amount in controversy exceeded $5,000,000.00. At that time, the citizens of Richmond additionally pursued this case against My-Way Trading, Inc., an Ohio corporation.

Notably, the citizens of Richmond subsequently filed a Notice for Voluntary Dismissal of Defendant, My-Way Trading, Inc., under Federal Rule of Civil Procedure 41(a) prior to their Answer to Plaintiffs' Complaint.[1] Therefore, this case is brought by citizens of Richmond, against the City of Richmond in the State of Indiana, Seth Smith, a resident of Indiana, and Cornerstone Trading Group, LLC, an Indiana corporation.

[1] The City of Richmond makes several references to the citizens of Richmond's claims against My-Way Trading Inc.; however, those claims are wholly inapplicable when they have been dismissed from this lawsuit. The citizens of Richmond would therefore respectfully request this Court decline to consider any evaluation of the issues at hand as they apply to My-Way Trading, Inc.

Corp. and *LG Display Co. v. Madigan*, 665 F.3d 768 (7th Cir. 2011). In those matters, after initially being removed to federal court under CAFA, the Court found that the cases did not meet the definition of "mass actions" under 28 U.S.C. § 1332(d)(11)(B). *Id.* Irrespective of the specific provision of 28 U.S.C. § 1332(d)(11)(B) that the Court found inapplicable, in both of those cases the District Court correctly determined that the case was not a mass action under CAFA. *Id.* Thus, the Appellate Court lacked jurisdiction over an appeal from the district court's remand order, and the petition to leave for appeal under 28 U.S.C. § 1453(c) was denied. *Anderson*, 610 F. 3d at 395; *LG Display*, 655 F.3d at 774. The same applies here.

Given that the District Court did not have jurisdiction under CAFA, the Seventh Circuit Appellate Court lacks jurisdiction over this appeal from the District Court's Order Adopting Magistrate Judge's Recommended Disposition. (JA1-JA12).

STATEMENT OF THE CASE

The City of Richmond's mischaracterization of the statement of the case and the citizens of Richmond's allegations in their Complaint is at the heart of all of the issues henceforth. On April 11, 2023, the properties at 308, 310, and 358 NW F Street in Richmond, Indiana (hereinafter "the Industrial Facility") were engulfed by a massive fire and burned for at least seven (7) days. (Civil Action No. 1:23-cv-1575, Dkt. 1-3, p. 4). **This fire is the singular event from which the citizens of Richmond were injured.**

STATEMENT OF THE CASE

On the day the fire started, the City of Richmond owned the properties on 358 and 310 NW F Street ("358" and "310", respectively). *Id.* Defendant, Seth Smith, the President and Registered Agent of Defendant, Cornerstone Trading Group, LLC (hereinafter "Cornerstone"), owned the property on 308 NW F Street ("308"). *Id.*

As a result, two lawsuits have been pursued that stem from this catastrophic inferno on April 11, 2023: (a) a class action brought by the residents within the evacuation zone[3] and (b) the present, individual action brought by one hundred and fifty-two (152) citizens of Richmond, both inside and outside of the evacuation zone.

The individual action at hand is composed of one hundred and fifty-two (152) citizens of Richmond. Of those, approximately 119 citizens reside within the half mile radius of the fire that would qualify them as members of the class. The remaining 33 citizens reside outside of the half mile radius and would not qualify as class members. This was not a duplicative lawsuit; all one hundred and fifty-two (152) citizens would have their own individualized claim irrespective of the class action should they opt out of or not qualify as members of the class.[4]

By the time the two-year statute of limitations approached in April of 2025, the Southern District Court had not determined whether to certify the class.[5] In order to preserve the claims of potential class members and citizens who did not meet the definition of a class member, this individualized action was filed.[6] The citizens of Richmond's Complaint alleges that for years leading up to the April 11, 2023, fire, Defendants were aware that a fire hazard existed and failed to take affirmative steps to address it.

On August 11, 2025, the Magistrate Judge *sua sponte* issued a Report and Disposition. (JA1-JA12). Since all of the claims in the action arise from that singular, catalytic event in Richmond, Indiana, the claim does not qualify as a mass action under CAFA, and the District Court did not have jurisdiction. The District Court properly remanded this case to State Court.

[3] 1:23-cv-1575, S.D. Ind.; Crossen Law Firm no longer represents the class action plaintiffs.

[4] The citizens of Richmond have relayed to the Defendants and to the Court that if they qualify for the class and opt in, they will be dismissed from this matter accordingly. At the time of this filing, none of the citizens of Richmond have opted into the class.

[5] The Class was subsequently certified and class members are actively being notified. 1:23-cv-1575, S.D. Ind.

[6] Accusing the citizens of Richmond of forum shopping and attempting to avoid a District Court's denial of remand in a separate case is disingenuous and unnecessary when remand was determined by the District Court *sua sponte*. (App. Dkt. 26-1854, Dkt. 12, p. 8 and 38).

Magistrate's recommendation, the District Court Adopted the Magistrate Judge's Recommended Disposition. (JA1-JA12). Since all of the claims in the action arise from that singular, catalytic event in Richmond, Indiana, the claim does not qualify as a mass action under CAFA, and the District Court did not have jurisdiction. The District Court properly remanded this case to State Court.

SUMMARY OF THE ARGUMENT

The citizens of Richmond respectfully request this Court affirm the District Court's Order Adopting Magistrate Judge's Recommendation (JA1-JA12) when the District Court did not have jurisdiction since the citizens of Richmond's Complaint involved a local, singular event or occurrence.

Firstly, the City of Richmond's misinterpretation of the citizens of Richmond's claims gives rise to the confusion in appropriately applying 28 U.S.C. § 1332(d)(11)(B)(ii). Since none of the citizens of Richmond were harmed by any conduct (or lack thereof) by the City of Richmond until the fire on April 11, 2023, they are not alleging continuous claims.

Secondly, the exception under 28 U.S.C § 1332(d)(11)(B)(ii) applies when the April 11, 2023, fire meets the definition of an event or occurrence in the state in which the action was filed that resulted in injuries in that state. By applying the Ninth Circuit's interpretation of "event" under *Allen*, the April 11, 2023, fire falls into the exception when it was a truly local, notable, singular, injury causing event with no substantial interstate effects. Furthermore, no matter what Circuit Court's analysis is applied, this case falls under the exception. This matter wholistically and perfectly reflects the legislative intention of CAFA and should be remanded to state court.

ARGUMENT

I. The City of Richmond's Brief is Predicated Upon the Mischaracterization of the Citizens of Richmond's Complaint for Damages and Allegations Therein.

First and foremost, the City of Richmond misconstrues the citizens of Richmond's allegations that the City of Richmond knew or should have known of the dangers as being explicit acts or omissions that caused their injuries. That is not the case. The citizens of Richmond's negligence claims relate to the ignition of the three parcels of land – not the several circumstances that occurred over the time of removal. The exception is part of the definition of a mass action, which needed to be culminating and pivotal moment of injury, on April 11, 2023.

Lastly, the City of Richmond failed to evidence that the District Court had jurisdiction at various periods of time. There was no injury and thus no cognizant claim until the fire, the

The Southern District Court of Indiana found that the case did not constitute a "mass action" when all of the claims arose from the fire at the Industrial Facility in the State in which the action was filed, and caused injuries to the local citizens of Richmond, Indiana. (JA1-JA12). Specifically, the District Court held that "[the exclusion encompasses a continuing set of related circumstances when they culminate in a single event like the Richmond fire." (JA9).

The District Court further held that "event" includes "continuing tortious conduct so long as that conduct 'culminate[d]' in a single, injury causing event." (JA8). In support, the District Court cited several cases across all Circuits that have generally read "event or occurrence" to include tortious conduct that "culminate[d]" in a single, injury causing event. *Id.*; *See Spencer v. Specialty Foundry Prods. Inc.*, 953 F.3d 735 (11th Cir. 2020); *Rainbow Gun Club, Inc. v. Denbury Onshore, L.L.C.*, 760 F.3d 405 (5th Cir. 2014); *Abraham v. St. Croix Renaissance Group, L.L.L.P.*, 719 F.3d 270 (3d Cir. 2013); *Addison v. Louisiana Reg'l Landfill Co.*, 398 F. Supp. 3d 4, 13 (E.D. La. 2019); *Adams v. Int'l Paper Co.*, 2017 WL 1828908 at *6 (S.D. Ala. May 5, 2017); *Robertson v. Chevron USA, Inc.*, 2016 WL 3667153 at *9 (E.D. La. July 11, 2026); *Allen v. Monsanto Co.*, 2010 WL 8752873 at *10 (N.D. Fla. Feb. 1, 2010); *Hamilton v. Burlington N. Santa Fe Ry. Co.*, No. A-8-CA-132, 2008 WL 8148619, at *12 (W.D. Tex. Aug. 8, 2008). Applying it to the case at hand, the District Court found that the citizens of Richmond's allegations fell within the scope of the exception: it involved a truly local event with no substantial interstate effects; the fire allegedly caused some environmental harm; and the injuries were all truly local. (JA1-JA12; JA37).

Although the Seventh Circuit has not explicitly addressed the issue as to when the exception applies, the District Court's decision that the citizens of Richmond's claims arose out of a single event is consistent with various Circuit Courts' interpretations and the plain meaning of

the exception when there was not any harm to the citizens of Richmond until the ultimate, single, and local injury causing event on April 11, 2023.

As the District Court acknowledged, continuous conduct that was potentially wrong does not equal a claim until it culminated at a single instance in an injury causing event. (JA8). This differs from the facts in *Holiday v. Alt. Richfield Co.* which continuously caused plaintiffs' injuries over a span of time. No. 2:16-cv-525 JVB, 2018 WL 11409352 (N.D. Ind. Mar. 7, 2018). Conversely, the citizens of Richmond are not claiming any injury from any conduct that happened before the fire on April 11, 2023; all of the citizens of Richmond's injuries stemmed from and are as a result of the April 11, 2023, fire. The District Court therefore correctly concluded that the exception applied to the case at hand.

Instead, the City of Richmond asks this Court to adopt the Ninth Circuit's evaluation under *Allen*. (App. Dkt. 26-1864, Dkt. 12, p. 10); 784 F.3d 625. In doing so, the City of Richmond requested that the Seventh Circuit apply the plain language of CAFA and hold that an event means a singular happening. *Id.* However, the District Court's decision is additionally supported by *Allen* and would provide the same result: the single event exception applies.

In Allen, CAFA's "local single event exception" applies "only to a truly local single event with no substantial interstate effects." 784 F.3d at 632; (App. Dkt. 26-1864, Dkt. 12, p. 10). *Allen* provides that an 'event' is 'something (especially something important or notable) that happens' or 'a thing that happens, esp. one of importance.' *Id.* at 630-31. The court read "an event or occurrence" to mean a "single happening." *Id.* at 631. The court indicated that "an event or occurrence" should not apply to continuing tortious conduct unless it culminates in a single event. *Id.* There must be a single, claim-generating event – such as a fire. *Id.*; *see also* Robertson, 2016 WL 3667153; *Addison*, 398 F. Supp. 3d 4. This is equivalent to the approach taken by the District Court. *See* (JA9-JA10).

The *Allen* definition of the exception applies squarely here. Unlike cases involving a continuous course of tortious conduct gradually over many years, the citizens of Richmond are suing for the devastating consequences of a single catastrophic event: a massive industrial fire and explosion.

While the City of Richmond may have been long aware of the accumulating plastics and debris on its

Based on *Allen*, this case falls squarely within the exception when the citizens of Richmond are not alleging a continuous course of tortious conduct that occurred over a number of years, but are instead bringing suit for a one-time fiery explosion. Hence, the exception would apply to this case under the Ninth Circuit's analysis when this is a singular happening.

A slightly more generous yet uncanny analysis was also applied by the Third Circuit in *Abraham*, 719 F.3d 270. This case is particularly compelling – and ultimately dispositive – to the matter at hand. In *Abraham*, plaintiffs argued that defendants purchased property while knowingly allowing hazardous conditions to remain on the property that could cause injury to plaintiffs and their property. *Id.* at 273. The defendant removed the case to the district court, but plaintiffs argued that removal was improper because the action fell within the local single event exception. *Id.* The defendants contended that the exception did not apply because they understood plaintiffs' complaint to allege that 'there were multiple events and occurrences over many years' that did not make it a single event or occurrence. *Id.*

The Third Circuit rejected defendant's argument and held that the action fell within the local single event exception, explaining:

> *[Transcription note: the rest of the quotation, the remainder of Argument II and the text of Argument III are not transcribed here.]*
>
> "As the District Court explained, the 'word event in our view is not always confined to a discrete happening that occurs over a short period over a short time span *such as a fire, explosion*, hurricane, or chemical spill… The Court's construction of the word is consistent with the word's common usage. Important events in history are not always limited to discrete incidents that happened at a specific and precise moment in time.
>
> As further support for this construction, we note that the plain text of the exclusion and the statutory scheme do not delimit the words "event or occurrence" to a specific incident with a fixed duration of time. Because the

III. The District Court Did Not Have Jurisdiction Since the Case Was Not a Mass Action Under CAFA

CONCLUSION

In conclusion, the District Court's Order Adopting Magistrate Judge's Recommendation (JA1-12) should be affirmed when the District Court did not have subject matter jurisdiction since the citizens of Richmond's Complaint involved a local, singular event. Indeed, the citizens of Richmond were injured by a singular happening when a train derailed on April 1, 2023. Because the citizens of Richmond's claims fall under an exception to CAFA's definition of "mass action," the District Court did not have jurisdiction and properly remanded the case back to state court.

Respectfully submitted,

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